

NON-CIRCUMVENTION AND CONFIDENTIALITY AGREEMENT (NCNDA)
--

This Non-Circumvention and Confidentiality Agreement (this “Agreement” or “NCNDA”) is made and entered into as of _____ (the “Effective Date”), by and between the following parties (each, a “Party,” and collectively, the “Parties”):

1. Company Name: END BUYER

Address :

Represented by:

Phone:

Email:

2. Company Name: END SELLER

Address:

Represented by :

Phone :

Email :

3. Company Name: MANDATE

Address:

Represented by :

Phone :

Email :

The Parties have expressed a mutual interest in exploring a relationship through which they may pursue one or more business transactions related to the purchase and sale of various commodities, potentially involving one or more designated suppliers (each, a “Transaction”). “Transaction” shall mean any commercial or business dealing or opportunity, including but not limited to the negotiation, purchase, sale, or trade of commodities or related services, which is introduced, facilitated, discussed, or made possible through either Party’s involvement under this Agreement. In connection with evaluating or effectuating any such Transaction(s), the Parties and their designated intermediaries (whose names may be inserted or appended to this Agreement) may, from time to time, directly or indirectly, disclose Confidential Information or Key Persons (each, a “Disclosing Party”) to the other Party and/or its Related Persons (each, a “Receiving Party”).

1. Confidential Information

- A.** When used in this Agreement, the term “**Confidential Information**” shall refer to the Confidential Information of the Disclosing Party and shall mean any and all information relating to the Transactions, a Party, a Party’s Related Persons or a Party’s Key Persons disclosed by the Disclosing Party to the Receiving Party, directly or indirectly, at all times prior to the Effective Date through the Final Termination Date: **(i)** in tangible form (including, without limitation, written, graphic, visual or virtual information incorporated in computer software or held in electronic storage media), whether or not clearly and conspicuously identified as confidential or proprietary; or **(ii)** contained in oral communications, whether or not prefaced as confidential in any case. The existence and content of this Agreement, the relationship of a Party’s Related Persons to such Party and any discussions related to this Agreement and/or a potential Transaction by the Parties and/or their Related Persons is Confidential Information. All information relating a Dispute, including but not limited to: **(i)** the existence of the Dispute, **(ii)** the basis of the Dispute, **(iii)** any judicial or arbitral rulings relating to the Dispute, and **(iv)** the final disposition of the Dispute, is Confidential Information. any copies, derivatives, extracts, summaries, analyses or notes, briefs, business information thereof generated and/or any ideas, themes, drafts, compilations, notes, data, intellectual property rights including but not limited to the copyright, trademark, patents, designs, etc. and other documents which are related to the business, technical, financial, operational, marketing and economic and contain or otherwise reflect any such Confidential which is not limited to oral, physical, visual, written, magnetic, electronic, digital or any other tangible or intangible form. Parties. Confidential Information shall not include information that **(i)** was already known to or in the possession of the Receiving Party on a non-confidential basis prior to being furnished by the Disclosing Party, **(ii)** is or becomes generally available to the public other than as a result of a direct or indirect breach of this Agreement, **(iii)** becomes available to the Receiving Party on a non-confidential basis from a Permitted Source, **(iv)** is required to be disclosed pursuant to a legal or regulatory process by oral questions, interrogatories, requests

for information or documents, subpoena, civil investigative demand or other similar process, or (v) information which is approved for use or disclosure by written authorization of the Disclosing Party. A “**Permitted Source**” is any source not reasonably known by a Receiving Party to be prohibited from disclosing such Confidential Information by legal, contractual, professional or fiduciary obligation. A Permitted Source shall not include a Disclosing Party’s Key Persons.

- B. Use of Confidential Information.** The Receiving Party agrees that it shall treat all Confidential Information as proprietary and confidential and shall not disclose or use the Confidential Information other than in connection with evaluating and/or consummating a possible Transaction, and that it will keep the Confidential Information strictly confidential and will use the same general standard of care in protecting the Disclosing Party’s Confidential Information as is used to protect its own Confidential Information. The Receiving Party may disclose the Confidential Information of the Disclosing Party to the Receiving Party’s Related Persons only if such Related Persons need to know the Confidential Information for the purpose of assisting in evaluating a possible Transaction, it being understood and agreed that (i) such Related Persons shall be informed by the Receiving Party of the confidential nature of the Confidential Information and shall be directed by the Receiving Party to treat the Confidential Information confidentially and strictly in accordance with the terms of this Agreement, (ii) such Related Persons shall agree to be bound by or are otherwise subject to an obligation of confidentiality with respect to the Confidential Information at least as restrictive as that set forth herein, and (iii) in any event, the Receiving Party shall be fully responsible for any breach of this Agreement by any of its Related Persons to whom it has disclosed Confidential Information.
- C. Notice Preceding Compelled Disclosure.** In the event that a Receiving Party or anyone to whom a Receiving Party transmits Confidential Information pursuant to this Agreement becomes compelled by law, rule or regulation, or legal or administrative process or proceeding or request by a regulator, to disclose any of such Confidential Information, the Receiving Party shall provide the Disclosing Party with prompt notice so that the Disclosing Party may seek a protective order or other appropriate remedy or waive compliance with the provisions of this Agreement. The Receiving Party shall cooperate with the Disclosing Party as it reasonably requests to obtain a protective order or other remedy. In the event that such protective order or other remedy is not obtained, the Receiving Party shall furnish only that portion of the Confidential Information which the Receiving Party is advised by counsel is legally compelled or requested and shall exercise reasonable efforts to obtain reliable assurance that confidential treatment shall be accorded any Confidential Information that must be disclosed. The Receiving Party shall not be liable for the disclosure of Confidential Information compelled pursuant to this paragraph unless such disclosure was caused by, or resulted from a previous disclosure by, the Receiving Party in a manner not permitted by this Agreement.
- D. No Warranty of Accuracy.** The Disclosing Party will endeavor to disclose only information that it reasonably believes to be reliable and relevant for the purpose of the evaluation of the Transactions, but the Receiving Party acknowledges that, unless otherwise stated in writing, neither the Disclosing Party nor any of its Related Persons is making any representation or warranty as to the accuracy or completeness of any information which is so provided, including implied warranties of merchantability, fitness for a particular purpose, or freedom from patent or copyright infringement, whether arising by law, custom or conduct. In no event shall either Party be liable for consequential or incidental damages. For the purposes of this paragraph, “information” is deemed to include all information furnished to the Receiving Party by the Disclosing Party, whether or not that information is deemed to be Confidential Information.
- E. Return of Information.** All written Confidential Information will be, at the Receiving Party’s option, returned promptly to the Disclosing Party or destroyed (as certified, upon written request, by a responsible officer of the Receiving Party) upon the written request of the Disclosing Party, and no copies of such Confidential Information or any abstracts thereof or reports or summaries based thereon shall be retained by the Receiving Party; provided, however, the Receiving Party shall be entitled to retain a physical and/or an electronic copy of the Confidential Information in accordance with applicable laws and regulations, and its own record retention policies.

2. Key Persons

- A.** The Receiving Party acknowledges that the Disclosing Party has invested a substantial amount of time and effort in developing the Key Persons. The Receiving Party hereby acknowledges that, at all times prior to the Effective Date through the Final Termination Date, the Key Persons belong exclusively to the Disclosing Party. The Parties agree that the purpose of this Agreement is to set out the terms and conditions under which the Disclosing Party shall permit the Receiving Party to temporarily use the Key Persons to evaluate and potentially consummate the Transactions for the benefit of both Parties. Nothing contained in this Agreement shall be construed as permitting the Receiving Party from engaging, directly or indirectly, in an Unauthorized Use of the Key Persons at any time through the Final Termination Date. “**Unauthorized Use**,” when used in this Agreement with respect to the Confidential Information or the Key Persons, shall mean any action by the Receiving Party in which they, directly or indirectly, disclose or use or attempt to use the Confidential Information or the Key Persons for a purpose other than one in furtherance of the evaluation or consummation of a Transaction in which both Parties participate.
- B.** The Disclosing Party hereby consents to assist the Receiving Party in evaluating and potentially consummating

the Transactions by using or allowing the Receiving Party and/or its Related Persons to use, as necessary, the Key Persons. The Receiving Party hereby agrees and consents to use the Key Persons exclusively to evaluate and potentially consummate the Transactions for the benefit of both Parties in accordance with the terms and conditions of this Agreement and not, under any circumstances, to engage in any Unauthorized Use of the Key Persons at any time through the Final Termination Date. The Receiving Party may provide access to the Key Persons of the Disclosing Party to the Receiving Party's Related Persons only if such Related Persons need such access for the purpose of assisting in evaluating a possible Transaction, it being understood and agreed that (i) such Related Persons shall be informed by the Receiving Party of the confidential and proprietary nature of the Key Persons and shall be directed by the Receiving Party to treat the Key Persons strictly in accordance with the terms of this Agreement, (ii) such Related Persons shall agree to be bound by or are otherwise subject to an obligation of confidentiality with respect to the Confidential Information at least as restrictive as that set forth herein, and (iii) in any event, the Receiving Party shall be fully responsible for any breach of this Agreement by any of its Related Persons.

3. Non-Circumvention

Each Party shall not, and shall not permit or otherwise facilitate its Related Persons to, take any actions which are intended or could reasonably be anticipated, directly or indirectly, to circumvent any of the terms or provisions of this Agreement at all times prior to the Effective Date through to the ensuing 12 months thereafter.

4. Miscellaneous

- A. The Parties acknowledge and agree that each Party is acting independently from the other Party, and nothing in this Agreement shall be deemed to make any Party the agent of the other Party, or create a partnership or joint venture between the Parties. The Parties agree that, absent an explicit written agreement to the contrary, no Party shall be under any obligation of any kind whatsoever with respect to a Transaction or any other matter by virtue of any written or oral expression with respect to such Transaction by a Party or any of its Related Persons, or by virtue of this Agreement, except for the matters specifically agreed to herein.

B. Indemnification

Each Party ("Indemnifying Party") agrees to indemnify, defend, and hold harmless the other Party ("Indemnified Party"), including its officers, directors, employees, agents, Related Persons, and Affiliates, from and against any and all losses, liabilities, damages, claims, demands, actions, judgments, costs, and expenses (including reasonable attorneys' fees and costs of investigation) arising out of or resulting from:

- a) any breach by the Indemnifying Party or its Related Persons of any provision of this Agreement, including but not limited to the confidentiality and non-circumvention obligations;
- b) any unauthorized use or disclosure of Confidential Information or Key Persons; or
- c) any negligent, wilful, or unlawful act or omission of the Indemnifying Party or its Related Persons in connection with this Agreement or any Transaction contemplated herein.

The Indemnified Party shall promptly notify the Indemnifying Party of any claim for which indemnity is sought under this Agreement and shall reasonably cooperate in the defense of such claim. The Indemnifying Party shall have the right to control the defense and settlement of any such claim, provided that the Indemnified Party may participate in the defense at its own cost and expense, and no settlement shall be made without the Indemnified Party's prior written consent if it imposes any obligation or admission on the Indemnified Party.

- C. Each Party hereby represents and warrants that it has all requisite power, authority and capacity to execute, deliver and comply with the terms of this Agreement, on behalf of itself and its Affiliates, and such execution, delivery and compliance does not conflict with, or constitute a default under, any instruments governing the Party, or violate any law, regulation or order, or any agreement to which the Party is a party or by which the Party may be bound. Moreover, the Disclosing Party warrants that it has the right to disclose the Confidential Information to the Receiving Party in accordance with the terms and conditions of this Agreement. Each Party shall be responsible for any breach of this Agreement by itself or any of its Related Persons.
- D. This Agreement constitutes the entire understanding and agreement between the Parties with respect to the subject matter hereof and it supersedes all prior and/or contemporaneous understandings and agreements (whether written or oral) with respect to the subject matter hereof, all of which are merged herein. Titles and headings used in this Agreement are for convenience only and shall not be used to limit, expand or interpret the language used thereunder. This Agreement may be modified, amended, waived or superseded only by a

written instrument signed by both of the Parties. The failure of a Party to insist upon strict adherence to any term or provision of this Agreement on any occasion shall not be considered a waiver thereof or deprive that Party of the right thereafter to insist upon strict adherence to that term or provision or any other term or provision of this Agreement. This Agreement is a perpetuating guarantee for the term of this Agreement and is to be applied to any and all transactions, present and future, related in any way to the Transactions, including subsequent follow-up, repeat, extended, renegotiated, and new transactions regardless of the success of the Transactions. This Agreement may be executed through the use of separate signature pages or in any number of counterparts with the same effect as if the Parties executing such counterparts had all executed one counterpart; provided, however, that the counterparts, in the aggregate, shall have been signed by all of the Parties.

- E. If at any time any of the provisions of this Agreement shall be deemed invalid or unenforceable or are prohibited by the laws of the jurisdiction where they are to be performed or enforced, by reason of being vague or unreasonable as to duration or geographic scope or scope of activities restricted, or for any other reason, such provision shall be construed, to the greatest extent possible, in a manner that shall render it valid and enforceable, or otherwise shall be considered divisible and shall become and be immediately amended to include only such restrictions and to such extent as shall be deemed to be reasonable and enforceable by the court, arbitrator or other body having jurisdiction over this Agreement, and the Parties hereby agree that such provisions, as so amended, shall be valid and binding as though any invalid or unenforceable provision had not been included herein. No invalidity or unenforceability of any provision shall affect any other portion of this Agreement unless the provision deemed to be so invalid or unenforceable is a material element of this Agreement, taken as a whole.
- F. Notwithstanding the place where this Agreement may be executed by any of the Parties, the Parties expressly agree that this Agreement shall be governed by and construed in accordance with the laws of New Delhi, India, without regard to its conflicts of law principles. Each Party hereby irrevocably and unconditionally submits to the exclusive jurisdiction of the courts of New Delhi, India, and any court competent to hear appeals therefrom, over any suit, action, or proceeding arising out of or relating to this Agreement. Each Party irrevocably waives any objection to the venue of any such suit, action, or proceeding brought in such courts, including any claim that such suit, action, or proceeding has been brought in an inconvenient forum. Each party shall bear its own legal costs.
- G. The substantive law governing the Agreement shall be the law of India and courts of New Delhi, without regard to its conflict of law provisions. Each party shall bear its own legal costs.
- H. The Receiving Party agrees that any breach or violation by it or its Related Persons of their obligations under this Agreement may cause irreparable injury to the Disclosing Party. The Disclosing Party, without waiving any other available remedies, shall be entitled to seek equitable relief, without the posting of any bond or other security that may include but that shall not be limited to both temporary and permanent injunctions to prevent any breach or threatened breach of the terms of this Agreement. In no event shall the injunctive relief described in this paragraph be considered the exclusive remedy of the Disclosing Party for any breach or violation by the Receiving Party or its Related Persons of their obligations under this Agreement.
- I. All notices and other communications to be given by either Party hereunder shall be in writing and shall be delivered by hand, sent by facsimile or email, or by an internationally recognized air express carrier requiring a receipt against delivery. Every notice shall be deemed received (i) if hand delivered, on the date of delivery; (ii) if by email or facsimile, on the date such email is sent or of confirmation of such fax transmittal's completion, if and only if, the recipient acknowledges the receipt of such email or facsimile in a return email or facsimile or in other written form; or (iii) if by air express, on the first to occur of actual delivery or actual refusal of such notice or communication, or the date of the third attempted delivery of such notice or communication on dates that were Business Days in the jurisdiction of the noticed Party, all as reflected in the written records of such air express carrier.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

1.NAME : END BUYER

TITLE :

SIGNATURE :

DATE :

2.Name : END SELLER

TITLE :

SIGNATURE :

DATE :

3.Name : MANDATE

TITLE :

SIGNATURE :

DATE :